

VCU311609 Vansicklen, Jon D vs. FCA US, LLC

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-20

Motion: Plaintiff's Motion for Attorneys' Fees

Source URL: <https://www.tulare.courts.ca.gov/general-information/tentative-rulings>

Source SHA-256: bc5fb624b388286c0c7a274c1876bcf77f84797281b80f6a69342e145325f422

Re: Vansicklen, Jon D vs. FCA US, LLC

Case No.: VCU311609

Date: July 20, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Plaintiff's Motion for Attorneys' Fees

Tentative Ruling: To grant the motion and award \$24,890 in fees and \$1,896.49 in costs.

Facts

In this matter, Plaintiff purchased a 2023 Ram 1500 ("Vehicle") which allegedly experienced repeated defects, including a blurry/double heads-up display requiring windshield diagnosis and replacement, windshield wipers that failed to adequately clear the windshield and required replacement, complaints of loud clunking noises and hard shifting when shifting between drive and reverse, repeated failures or inconsistent operation of the forward collision warning and pedestrian emergency braking systems, including failure to detect pedestrians, vehicles, radar/camera alignment concerns, and the system appearing active but not engaging, as well as an "Emergency Call Error/SOS Call Unavailable" warning.

On October 7, 2025, this matter settled.

On May 8, 2026, Plaintiff filed this motion for recover of fees in the amount of \$63,175.00, consisting of \$50,540 in fees with a 1.25 times multiplier, as well as costs and expenses in the amount of \$1,896.49.

On July 8, 2026, Defendant filed an untimely opposition to this motion, arguing that no multiplier should be permitted, that a lower hourly rate should be applied and that some of the entries should be eliminated, as discussed in further detail below.

Authority and Analysis

Lodestar Calculation

"A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

"Under that [lodestar]method, the court 'tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.)" (Marshall, supra, 54 Cal.App.5th at 285.)

Here, Plaintiffs seek to recover 120.9 hours at rates ranging from \$750 to \$150 and to for an award of a 1.25 multiplier.

No Multiplier

As to the 1.25 enhancement sought by Plaintiffs, such an award is based on the following factors:

The novelty and difficulty of the questions involved;

The skill displayed in presenting them;

The extent to which the nature of the litigation precluded other employment by the attorney; and

The contingent nature of the fee award. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

The Court finds Plaintiffs' justification for the multiplier is conclusory and does not set forth an adequate basis to award an enhancement. The Court does not find that the work cited demonstrates such extraordinary skill to justify an enhancement to the award sought. This case settled before trial, and the Court finds that this appears to be a standard Song-Beverly case, with no additional novelty or difficulty of issues evidenced from the supporting papers filed by Plaintiff.

As to the third factor, the Court does not find that Plaintiff's counsel was precluded from accepting other work.

As to the fourth factor, The Court further agree that the "contingent risk" here was minimal given the mandated fee-shifting of attorneys' fees and costs. (Ketchum v. Jones (2001) 24 Cal.4th 1122, 1141-42 [Where attorney fees are mandatory, the "contingent" risk of "establishing eligibility for the award" is not actually contingent and does not warrant an enhancement.].)

The Court will not award an enhancement in this case.

Reasonable Local Rate

"The lodestar calculation begins with a determination of the 'reasonable hourly rate,' i.e., the rate 'prevailing in the community for similar work.' (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.)" (Marshall, supra, 54 Cal.App.5th at 285.) "The general rule is '[t]he relevant "community" is that where the court is located.' (Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc. (2014) 226 Cal.App.4th 26, 71.)" (Marshall, supra, 54 Cal.App.5th at 285.) "The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the best judge of the value of professional services rendered in his court." (Id.) Additionally, the determination of the value of the legal services is committed to the discretion of the trial court without necessity of expert testimony. (Cordero-Sacks, v. Housing Authority (2011) 200 Cal App 4th 1267, 1286.)

There is no evidence provided that the \$750 and \$600 rates are the prevailing rates in Tulare County for counsel, where this Court resides. This Court, based upon its experience as to the prevailing rates in Tulare County, sets the hourly rate at \$350 per hour for counsel. Further, the Court will set all paralegal work performed at the rate of \$150 per hour.

Number of Hours Reasonably Expended

Plaintiff's counsel's records indicate 120.9 hours incurred on this matter.

Although detailed time records are not required, courts have expressed a preference for contemporaneous billing and an explanation of work. (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) "Of course, the attorney's testimony must be based on the attorney's personal knowledge of the time spent and fees incurred. (Evid.Code, § 702, subd. (a) [the testimony of a witness concerning a particular matter is inadmissible unless he has personal knowledge of the matter].) Still, precise calculations are not required; fair approximations based on personal knowledge will suffice." (Mardirossian & Associates, Inc. v. Ersoff (2007) 153 Cal.App.4th 257, 269.)

The starting point for the determination as to hours is the attorney's submitted time records. (Horsford v. Board of Trustees of Calif. State Univ. (2005) 132 Cal. App. 4th 359, 395-397—verified time records entitled to credence absent clear indication they are erroneous.)

Plaintiff has the burden of showing that the fees were reasonably necessary to the conduct of the litigation and were reasonable in amount. (Morris v. Hyundai Motor Am. (2019) 41 Cal.App.5th 24, 34, as modified (Oct. 11, 2019), rev. denied (Jan. 2, 2020) [internal quotations and citations omitted].) If the party seeking fees fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, "then the court must take this into account and award attorney fees in a lesser amount." (Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 247 [citing Nightingale v. Hyundai Motor Am. (1994) 31 Cal.App.4th 99, 104]; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1138 [where prevailing party fails to meet that burden, the court "has broad discretion to adjust the fee downward or deny an unreasonable fee altogether"].)

Here, Defendant specifically challenges the following entries:

July 29, 2024 – Defendant seeks to strike the 1.5 hours by Yeck as to review of the draft complaint and review of repair documentation, noting that a paralegal had already drafted the complaint. The Court agrees some reduction is necessary, but notes this appears to be review by an attorney of paralegal work. Therefore, the Court will strike .5 hours from this entry. (-.5 as to Yeck.)

September 16, 2024 – Defendant seeks to strike the 1.0 hours by Yeck to review the answer, the letter and documents. Again, a partial reduction appears proper and the Court will strike .5 hours from this entry. (-.5 as to Yeck.)

February 2, 2025 – Here, Defendant challenges 2.2 hours under trial preparation for drafting and revising a damages spreadsheet and chronology. The Court will reduce this entry by 1 hour. (-1 hour as to Inscore.)

September 19, 2025 – Defendant seeks to strike 2.5 hours incurred as to final review of joint trial documents by Yeck, noting 1.5 hours incurred by Inscore as to “drafting those same documents.” This appears, to the Court, as a review by a more senior attorney of other attorney work. The Court will reduce the entry by 1 hour (-1 hour as to Yeck.)

September 23, 2025 – Defendant here seeks to challenge the 2 hours by Yeck as to preparation of client for the MSC and review of repair records and technical bulletins. Defendant argues that the records are insufficient to justify additional review of these documents and is otherwise vague as to the activities performed. The Court will strike 1 hour here. (-1 hour as to Yeck.)

October 1, 2025 – Defendant seeks to strike 1.5 hours incurred by Yeck as to review further videos and evidence of repairs and meeting with client. The Court will strike .5 hours from this entry. (-.5 as to Yeck.)

October 4, 2025 – Here, Defendant challenges the 2 hours incurred by Inscore as to review and revise the reply in support of the motion to compel deposition of Defendant’s PMQ on the basis that a paralegal billed 6 hours to draft the motion itself. The Court will reduce this entry by 1 hour. (-1 as to Inscore.)

April 1, 2025 and May 8, 2025 – Defendant challenges the 1 hour billed by Yeck as to assist with preparation of fee motion and 2 hours billed as to reviewing the final draft thereof. Defendant notes a paralegal had billed 14 hours drafting the motion prior thereto. The Court will reduce these entries, in total, by 1.5 hours (-1.5 as to Yeck.)

March 27, 2026, May 7, 2026, May 8, 2026 – Defendant challenges the 14 hours total incurred by paralegal Ulloa as to the drafting of the attorney fee motion, for which Defendant argues that attorneys billed an additional 6.5 hours thereto. The Court has reduced some of the attorney hours in the prior paragraph. The Court will reduce the hours as to Ulloa here by 4. (-4 hours to Ulloa.)

Anticipated Fees – The Court does not award anticipated fees. (-3.5 as to Ulloa; -3 as to Inscore.)

As a result, the Court calculates the fees as follows: 46.9 hours at \$350 per hour, 56.5 hours at \$150 per hour, for a total of \$24,890.

Costs

Plaintiff seeks to recover \$1,896.49 in costs. Defendant does not challenge the costs sought by Plaintiff.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.